IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT – II)

Item No. 302
CP-CAA-96/ND/2022
New RA-45/2024

IN THE MATTER OF:
Ayaan Finserve India Private Limited and Nageshwar Marketing Private Limited ... **Applicant/Petitioner**

Under Section: 230-232

Order delivered on 25.10.2024

CORAM:
SH. ASHOK KUMAR BHARDWAJ
HON'BLE MEMBER (J)

SH. SUBRATA KUMAR DASH
HON'BLE MEMBER (T)

PRESENT:
For the Applicant :
For the Respondent :

Hearing Through: VC and Physical (Hybrid) Mode

ORDER

RA-45/2024: Though the reasons stated in the application i.e. the RA-45/2024 filed for restoration of CAA-96/ND/2022 are not possible, as only in such circumstances where a party is not able to appear before the Tribunal or the Court for the circumstances beyond its control the ex-parte orders may be re-called/set aside. The technical glitches in connectivity cannot be perceived as such ground, as parties can always come physically. Nevertheless, in the interest of principal of natural justice, **the RA is allowed and** CAA-96/ND/2022 is restored to its original position. Let the same be listed on 13.12.2024.

Sd/-
(SUBRATA KUMAR DASH)
MEMBER (T)

Sd/-
(ASHOK KUMAR BHARDWAJ)
MEMBER (J)